DIVISION BENCH **ITEM NO. 141**

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ
CP (CAA) No. 6/ALD/2023 IN CA (CAA) No. 4/ALD/2023

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 24th August, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**ACE LANDCRAFT REALTORS PVT. LTD. WITH STAR LANDCRAFT PVT. LTD.**
UNDER SECTION	**230/232 of Companies Act, 2013**

COUNSEL APPEARED THROUGH PHYSICAL HEARING:

Sh. Krishna Dev Vyas, Adv. *: For the Petitioner*

Sh. Ajeet Kumar Singh, AOL *: For the OL*

ORDER

1. The report on behalf of the Official Liquidator has been filed vide Diary No.2205 dated 16th August, 2023, the same is taken on record. The report on behalf of the RD has been filed vide Diary No. 2206 dated 16th August, 2023, the same is also taken on record. Income Tax Department having jurisdiction with respect to the petitioner company has sent an email dated 14th August, 2023, to the Registry of this Tribunal to the effect that they don't have any objection in the matter of the amalgamation of the petitioner company. The said email dated 14th August, 2023 is also taken on record.

2. It is stated by the Ld. Counsel representing the petitioners that in compliance of the order of notice in the second motion petition, the notice was duly served upon RERA also, having the jurisdiction. In this regard, an affidavit of service has also been filed, and as mentioned on page no. 9 of the affidavit of service, the service has been

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affected upon the concerned RERA authorities, however, no objection/reply has so far been received.

3. It is also further stated by the Ld. Counsel representing the petitioners that there are three transferor companies and one transferee company. With respect to three transferor companies, there are no on-going real estate projects and the only project which is continuing, is in the transferee company, and it is contended by the Ld. Counsel representing the petitioners that transferee company in any case is going to exist after amalgamation. Be that as it may, matter is heard. Order reserved.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

24th August, 2023

Bipul Kumar Tiwari
(Stenographer)